

Smt. Kushma Dixit Mahavidyalay Nagla Suraj v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 7 December 2023 · 2023:AHC:232033-DB · Writ-C No. 36610 of 2023 · **Writ disposed; demand remitted to Executive Engineer under clause 6.5**

HEADNOTE

A disputed recovery after permanent disconnection, including whether any bill could be raised, is not quantified in writ. The consumer may represent to the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005 within fifteen days, and the Engineer shall decide within one month. Coercive action stays for two months or until that decision, whichever is earlier.

FACTUAL SUMMARY

Smt. Kushma Dixit Mahavidyalay challenged recovery of Rs.4,11,249. Its 28 May 2022 bill showed Rs.1,36,518 payable, after a last payment of Rs.2,20,000. On 26 October 2023 the Court stayed coercive steps if that sum was paid within a month. The Executive Engineer refused the deposit. The department stated that the connection was permanently disconnected on 8 November 2021, and that Rs.2,20,000, Rs.5,000, Rs.40,000 and Rs.1,36,518 had been paid between 23 November 2016 and 5 December 2023. The petitioner said no bill could issue after disconnection and that earlier bills were sent in error.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

representation to Executive Engineer on a post-disconnection demand

HOLDING

The petitioner may, within fifteen days, represent before the concerned Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005, including the objection that no bill could be raised after permanent disconnection. The Executive Engineer shall decide that representation within one month. For two months, or until the decision, whichever is earlier, no coercive action shall be taken. The writ is disposed of on these directions. ¶ 5-7

PRINCIPLE TAGS

article-226-alternate-remedy-up-supply-code-6.5 The Division Bench disposed of the writ without deciding the demand, treating a representation under clause 6.5 as the appropriate remedy. ¶ 5-7

clause-6.5-representation-executive-engineer The representation is to be made within fifteen days before the concerned Executive Engineer, respondent no. 4. ¶ 5

clause-6.5-pending-representation-to-be-decided If filed within fifteen days, the clause 6.5 representation shall be decided within one month, and coercive action stays for two months or until that decision, whichever is earlier. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER RS.4,11,249 WAS RECOVERABLE WHEN THE 28 MAY 2022 BILL SHOWED RS.1,36,518 PAYABLE

The Court called for an explanation on 26 October 2023 but did not quantify or quash the demand. The dispute was left to the Executive Engineer under clause 6.5. ¶ 3-5

NOT DECIDED — WHETHER ANY BILL COULD BE RAISED AFTER PERMANENT DISCONNECTION ON 8 NOVEMBER 2021, AND WHETHER EARLIER BILLS WERE SENT IN ERROR

The petitioner's contention was recorded and not adjudicated. ¶ 4

NOT DECIDED — WHETHER THE EXECUTIVE ENGINEER'S REFUSAL TO ACCEPT RS.1,36,518 WAS CONTEMPT OF THE ORDER DATED 26 OCTOBER 2023

On 30 November 2023 the Court treated the refusal as a gross violation and directed personal appearance if a bank draft was not accepted. The sum was paid on 5 December 2023 and the writ was disposed of without a contempt finding.

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